

		court otherwise retains jurisdiction again, Defendant may request that the motion be calendared again for hearing. Plaintiff to give notice.
8	Timanus vs. Melrose Recovery LLC.	<u>Motion for Judgment Not Withstanding the Verdict</u> <u>Motion for New Trial</u> <u>Motion to Vacate Judgment</u> 1. Motion for Judgment Not Withstanding the Verdict; 2. Motion for New Trial; and 3. Motion to Vacate Judgment. The court DENIES Defendant/Cross-Complainant WALTER YBARRA and Defendant RESTORATIONS HEALTH CARE LLC's (collectively, "Moving Defendants") motion to set aside the 5/18/26 Judgment and to enter a revised judgment notwithstanding the verdicts rendered by the jury on 4/28/26. The court also DENIES Moving Defendants' motion for a new trial. The court also DENIES Moving Defendants' motion to vacate the judgment. For the separately filed JNOV motion (ROA 473), motion for new trial (ROA 476), and motion to vacate the judgment (ROA 469), Moving Defendants argue that the evidence received at trial is insufficient to support the jury's verdict. Specifically, moving parties argue that "(1) [Plaintiff/Cross Defendant TRINA TIMANUS] did not establish that she suffered any harm; (2) Plaintiff did not present any credible evidence of damages; (3) the jury's damages award was inconsistent with Plaintiffs breach of contract and breach of fiduciary duty claims; (4) Plaintiff did not identify any breach of fiduciary duty by Ybarra upon which an award of punitive damages could be based; and (5) the jury's punitive damages award was improper, as Plaintiff did not introduce evidence of